

Adhyaksh Kargil Shahid Mahavidyalaya v. State of U.P.

Allahabad High Court · Division Bench · 12 September 2019 · WRIT - C No. 27282 of 2019 · **Writ disposed of with liberty to seek bill rectification under clause 6.5.**

HEADNOTE

A writ challenging a recovery citation for electricity dues will not be entertained independently of a challenge to the underlying demand. Where the consumer alleges that the demand rests on incorrect bills, the remedy is an application under clause 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer. The Division Bench declined discretionary interference and disposed of the petition with that liberty.

FACTUAL SUMMARY

The petitioner, Adhyaksh of Kargil Shahid Mahavidyalaya, held connection No. 130437. A bill for April 2016 with arrears of Rs. 1,72,179 was raised. The petitioner challenged that bill by a complaint under Section 12 of the Consumer Protection Act before the District Consumer Forum, Etawah. A recovery citation dated 13 April 2018 then issued for Rs. 1,25,000 as electricity dues. The petitioner invoked the High Court's writ jurisdiction to quash the recovery citation.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-dispute-remedy

HOLDING

A recovery citation for electricity dues is only consequential to the underlying demand and cannot be challenged in writ independently unless that foundation is assailed. If the consumer alleges that the demand is based on incorrect bills, the remedy is to get the bills rectified under clause 6.5 of the U.P. Electricity Supply Code, 2005 by moving an appropriate application before the Executive Engineer. Discretionary writ jurisdiction was declined and the petition was disposed of with liberty to take that recourse. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE APRIL 2016 BILL AND THE RECOVERY OF RS. 1,25,000 WERE CORRECT

Left to a clause 6.5 application before the Executive Engineer. ¶ 1

NOT DECIDED — EFFECT OF THE PENDING DISTRICT CONSUMER FORUM COMPLAINT UNDER SECTION 12 OF THE CONSUMER PROTECTION ACT

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